

5. It was said, a perjury in facie Curie is punishable by the Judge; and such is it if jurors go against their evidence; perhaps a witness may be punished for perjury in facie Curie (which I will not maintain to be law), but a jury can never be so punished, because the evidence in Court is not binding evidence to a jury, as hath been shew'd.

[153] 6. Some records were cited, of fines pro concealamento; no doubt it is an article inquirable in everyoyer and terminer, and one jury may find it upon another.

7. *Braynes case* was urg'd, but the jurors were there fined for a manifest combination to delude the Court, by agreeing upon two verdicts, and concealing the latter, if the Court would be satisfied with the former.

8. *Wharton's case*, reported by two reporters, Yelverton saith, that the Judges, whereof Popham was one, and a Privy Counsellor, were very angry, and fined the jury for their verdict, and finding against direction.

In those Reports that pass under the name of Noy's, the same case is reported with this, that the Judges conceiv'd the jury had been unlawfully dealt with to give that verdict; which, if true, the fining was lawful, and the case therein reported, short by Yelverton.

9. *Wagstaff's case*, in the King's Bench lately, was the same with the present case; but by the record it is reasonable to think the jurors committed some fault besides going against their evidence, for they were unequally fined.

But however, all the Judges having, upon this return, resolved, that finding against the evidence in Court, or direction of the Court barely, is no sufficient cause to fine; the jury answers all these cases, if not answered before.

10. There remains *Southwell's case*, reported by Leonard; some cases out of the Court of Wards in *Lannoy's case*, reported by Serjeant Moore, f. 730, where jurors were sent to the Fleet, or threatened to be sent, for not finding offices according to direction of the Court.

1. An inquest of office is not subject to an attainet.

2. It neither determines any mans right, nor doth any party put any tryal upon them.

3. They are only to find naked matter of fact, as the books are of 3 H. 7, f. 10 b. and 2 H. 4, f. 5 a. but principally an office for the King is in many cases, as necessary, as an entry for a common person, without which he can never come by, or try his right, nor can the King, without an office, know whether he hath a right to a ward, a mortmain, or the like; and as it is an injury to hinder a man from his entry, whereby his right may be tried, so it is not to find an office for the King, whereby his right may be tried, which concludes no man, but enables the King to a tryal of his right, and in truth is only a finding of matter of fact, and no more.

[154] Therefore perhaps it may be an offence, as of a witness refusing his testimony, not to find an office for the King, when clear proof is made of the matter of fact; but if proof be not made at all, or be altogether doubtful, or that the matter be matter of law, the inquest may find an ignoramus, which a jury, upon a tryal, can never do: but of this I shall say no more, it concerning not the case in question.

Presidents. That the Court of Common Pleas, upon Habeas Corpus, hath Discharg'd Persons Imprison'd by other Courts, upon the Insufficiency of the Return only, and not for Priviledge.

Sir Anthony Roper, committed by the High Commission Court discharg'd absolutely in the Common Pleas, as unlawfully committed and detain'd, without any mention of priviledge.

George Milton, imprisoned for contempt, scandalous words of the Court, and convicted of drunkenness; the causes resolv'd insufficient, and therefore dimittitur à prisona, and the goaler discharg'd of him; but he gave bayl to attend the pleasure of the Court.

Elizabeth Ash committed by High Commission, pro lenocinio, in like manner discharg'd; the cause being insufficient to detain her in prison, or to hinder her from the priviledge of that Court, but no other mention of priviledge put in bayl.

Richard Hayes, for refusing to do penance, as injoyn'd, committed by the High Commission, the cause judg'd insufficient to commit, but gave bayl as before; he demanded a habeas corpus by reason of priviledge.

But it is to be observ'd, that priviledge lies only where a man is officer of the Court, or hath a prior suit in the Common Pleas depending, and is elsewhere arrested